

FIRST INFORMATION REPORT
(U/s 173 B.N.S.S.)

Book No. **1428**

Serial No. **014**

1. District: PS: Year: FIR No.: Date:
New Delhi CBI/ACB/New Delhi 2024 RC0032024A0042 24.10.2024

2. (1) Act - PC Act 1988
(as amended in 2018)
(2) Act -

Sections: **7**

Sections:

(3) Act -

Sections:

(4) Other Acts & Sections-

3. (a) Suspected Offence- **Demand of undue advantage by public servant.**

(b) Day:

Date:

Time:

(c) Information received at PS: **CBI, ACB, New Delhi**

Dated: **23.10.2024**

Entry No. **2**

Date: **24.10.2024**

Time: **08:05 A.M.**

4. Type of information -

(Written / Oral):

Written

5. Place of occurrence **Delhi**

(a) Direction & Distance from

Beat No. -

(b) Address:

(c) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant: credible source information

(a) Name : Pramod Kumar

(b) Father's/Husband's Name : Late Sh. Satyaveer

(c) Date of Birth :

(d) Nationality : Indian

(e) Passport No. NA Date of Issue NA - Place of issue NA

(f) Profession : Private Person

(g) Address : R/o Chotpur Colony, Nearby Hari Singh School, Sector-63,
Noida, UP-201301

7. Details of known/suspected/unknown accused with full particulars: -
(Attached separate sheet, if necessary)

1. Shri Girish Mahour, Head Constable, Cyber Police Station Model Town,
North West Delhi.

8. Reasons for delay in reporting by the complainant/informant: -

No delay

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen: -

11. Inquest Report/U.D. Case No., if any,: -

12. First information contents (Attach separate sheet, if required):

A written complaint dated 23.10.2024 from Shri Pramod Kumar S/o Late Sh. Satyaveer, R/o Chotpur Colony, Nearby Hari Singh School, Sector-63, Noida, UP-201301 was received in office and copy thereof is enclosed herewith. The Complaint and subsequent verification report (enclosed) dated 23.10.2024 prima facie disclose commission of offence punishable under section 7 of PC Act 1988 (as amended in 2018) on the part of Sh. Girish Mahour, Head Constable, Cyber Police Station Model Town, North West Delhi.

Therefore, a regular case under section 7 of PC Act 1988 (as amended in 2018) is registered against Sh. Girish Mahour, Head Constable, Cyber Police Station Model Town, North West Delhi and entrusted to Sh. Mukesh Mishra, Inspector, CBI, ACB, New Delhi for investigation.

सेवा में,

श्री मान पुलिस अधीक्षक महोदय
C.B.I, A.C.B, Delhi

विषय - गिरिश महोर हैंड कॉन्सोबल साइबर पुलिस स्टेशन
नॉर्थ वेस्ट देहली के द्वारा रिशवात मांगी जाने
के सम्बन्ध में शिकायत

श्री मान,

सावेनय निवेदन है कि मैं प्रमोद कुमार शंकर
चौहपुर कॉलोनी सेक्टर-63, निपर हाई विल्ड
स्कूल मोयडा इतर प्रदेश का निवासी हूँ। और
एक Common service Center (CSC) का संचालक
हूँ। 20/09/2024 को एक व्यक्ति राजा बाबु ने
2000 रुपये मेरी QR कोड (CSC) पर डाली और
मेने CASH दे दिया। 23/09/2024 को मुझे
मेरे बैंक AU SMALL FINANCE BANK से
पता चला कि मेरा Account (2211248938750420)
को cyber police station North west Delhi
के कदने पर freeze कर दिया गया है। जिससे
सम्बन्ध में cyber police station North west
Delhi गया और Head कॉन्सोबल गिरिश महोर
से मिला।

श्री ~~Darinder~~

श्री ~~Vijay~~

श्री ~~Umesh~~

श्री ~~Rajendra~~

23/10/24

हेड कांसटेबल गिरिश महोर ने मुझसे Account
Defreeze करने के लिए 2000 रुपये मोनिका
को लौटाने को कहा

मोनिका को 2000 रुपये लौटाने के बाद भी
हेड कांसटेबल गिरिश महोर ने मुझसे मेरा
Account Defreeze करने के लिए 10000 रुपये
रिशवात की मांग की।

मैं यह मांगी जा रही रिशवात की शरिहे हेड कांसटेबल
गिरिश महोर को नहीं देना चाहता हूँ।

अतः आप से निवेदन है कि हेड कांसटेबल
गिरिश महोर के खिलाफ उचित
कानूनी कार्यवाही की जाए

आपकी

Ramod Kumar

23/10/24

नाम - उमोद कुमार

मो - 7248068966

पता - चोटपुर कॉलोनी सेक्टर 63, निसर
वार्ड हार सिंह स्कूल, NoIDA 201301

Verification Report in CO- 77/2024 CBI/ACB/New Delhi Dated 23.10.2024

Today i.e. 23.10.2024, a complaint was submitted by Sh. Pramod Kumar S/o Late Sh. Satyaveer R/o Chotpur Colony, Nearby Hari Singh School, Sector-63, Noida, UP-201301 to SP, CBI/ ACB/ Delhi, which was endorsed to the undersigned, i.e. Davinder Kumar, Inspector, CBI, ACB, New Delhi as VO being assisted by SI Aakash K. Srivastav. The presence of independent witness Sh. Samay Singh Yadav, Junior Clerk-cum-Typist, Commercial Department, Northern Railway, Head Quarter, Baroda House, New Delhi was secured in CBI Office through Duty Officer. The complainant Sh. Pramod Kumar and above named independent witness were mutually introduced to each other and the purpose of assembly was explained to all present.

The hand written complaint dated 23.10.2024 submitted by the complainant was read over and explained to the independent witness. It is alleged in the complaint that complainant runs a Common Service Center (CSC) at Chotpur Colony, Nearby Hari Singh School, Sector-63, Noida, UP-201301 and on 20/09/2024, a person namely Raja Babu sent Rs. 2000/- on QR code bearing account number i.e. 2211248938750420 (being maintained in AU Small Finance Banking) in lieu of cash amount of Rs.2,000/-.

It is further alleged that on 23/09/2024, complainant visited the aforesaid bank and got information that the account number 2211248938750420 has been freezed on the notification of Cyber Police Station, North West Delhi and advised to visit there to de-freeze the said account. Accordingly, complainant visited Cyber Police Station, North West Delhi for de-freezing the aforesaid bank account and met HC Girish Mahour who directed the complainant to return Rs.2,000/- to Ms. Monika for getting de-freezed the said account.

It is further alleged that despite returning Rs.2,000/- to Ms. Monika, HC Girish Mahour demanded bribe amount of Rs. 10,000/- from the complainant for de-freezing his account.

The complainant did not want to pay the bribe amount to Sh. Girish Mahour, Head Constable, Cyber Police Station, Model Town, North West Delhi and hence submitted the complaint to SP, CBI, ACB, Delhi for taking legal action against Sh. Girish Mahour, Head Constable, Cyber Police Station, Model Town, North West Delhi.

In order to verify the allegations levelled in the complaint, a new memory card of 16 GB capacity and a new DVR (Sony made) were arranged. The memory card was taken out of its original packet. After explaining function of the DVR to the Complainant and the independent witness, the said memory card



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Somesh
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Aakash
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was inserted in the DVR in the presence of independent witness. And after ensuring blankness of DVR and memory card, the introductory voice of the independent witness Sh. Samay Singh Yadav was recorded through DVR in the said memory card.

Thereafter, in order to verify the allegation made in the complaint, I along with SI Aakash K. Srivastav, complainant and independent witness left the CBI Office in office vehicle at about 1435 Hrs for Cyber Police Station, Model Town, North West Delhi. At about 1515 Hrs, office vehicle was parked nearby Model Town Metro Station at safer distance in order to avoid any suspicion by the Suspect officer.

After giving necessary briefing in the car the complainant was directed to meet the above said suspected officer and have a conversation with him to ascertain the demand of bribe. The above said independent witness was asked to remain close to the complainant and try to see the person with whom the complainant will converse and try to overhear the conversation as far as practically possible. Thereafter, at about 1523 hrs, the DVR in recording and hold mode was kept inside pocket of pant wore by the complainant. Afterwards, the complainant, being followed by the independent witness, went to Cyber Police Station, Model Town, North West Delhi to meet HC Girish Mahour and to have conversation regarding his matter. I and SI Aakash K. Srivastav remained present in the official car.

At about 1540 Hrs, the complainant and independent witness came back to the parked vehicle. After reaching to the vehicle, the DVR was taken back from the complainant by SI Aakash Srivastav and removed from hold mode and switched off. Meanwhile, the complainant informed that Head Constable Girish Mahour had directed him to come at camp chauk to talk about the matter.

Accordingly, at about 1542 hrs, the DVR in recording and hold mode was kept inside pocket of pant wore by complainant. Afterwards, the complainant being followed by the independent witness went to Camp Chauk to meet HC Girish Mahour. I and SI Aakash K. Srivastav again remained present in the official car.

Thereafter, at about 1606 Hrs the complainant and independent witness came back to the parked vehicle. After reaching to the vehicle, the DVR was taken back from the complainant by SI Aakash Srivastav and removed from hold mode and switched off.

The complainant was asked to narrate the incident upon which he narrated that after leaving the CBI vehicle, he went to Cyber Police Station and enquired about HC Girish Mahour at reception of the said police station. The receptionist told the complainant to call HC Girish Mahour after making entry of his particular at reception. Accordingly, he (complainant) made a normal call from his mobile number i.e. 7248068966 to the mobile number of suspect officer i.e.

Pranod Kumar
23/10/24

Samay
23/10/24

Aakash
23/10/24

D
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9999158056. During conversation, complainant introduced himself to SO and told him that he (complainant) was waiting in visitor room. HC Girish Mahour asked him (complainant) the reason of arrival upon which he (complainant) reminded him about de-freezing of his (complainant) account number. The said conversations were recorded in SD card through DVR.

Complainant further narrated that at about 1532 Hrs. Complainant received a normal call from the mobile number of HC Girish Mahour wherein he informed him (complainant) that he was at red light of Camp Chauk upon which complainant enquired HC Girish Mahour to come there. The said conversations were recorded in SD card through DVR.

Complainant further narrated that at about 1535 Hrs, he (complainant) again received a normal call from the mobile number of HC Girish Mahour. During the said call he (complainant) informed Girish Mahour that he (complainant) was beneath the Metro Station. During the said call, HC Girish Mahour enquired him (complainant) about the bribe amount. The said conversations were recorded in SD card through DVR.

Complainant further narrated that at about 1537 Hrs, he (complainant) received a whatsapp call from the mobile number of HC Girish Mahour. During the said call HC Girish Mahour asked him (complainant) that how much amount had been arranged upon which he (complainant) told that he could not arrange Rs.10,000/- and requested HC Girish Mahour to reduce the demanded bribe amount. During the said call, HC Girish Mahour told him (complainant) to come tomorrow with demanded bribe amount and to meet him at red light of Camp Chauk. The said conversations were recorded in SD card through DVR.

Complainant further narrated that thereafter he (complainant) followed reached to parked vehicle of CBI team and informed CBI team that Head Constable Girish Mahour had directed him to meet at Camp Chauk. Accordingly, on the direction of CBI team, he (complainant) left for camp chauk in E-Rikshaw to meet suspect office Head Constable Girish Mahour.

Complainant further narrated that at about 1543 Hrs, he (complainant) made a whatsapp call on the mobile number of HC Girish Mahour and informed him about his reaching shortly. At about 1552 Hrs, he again made a normal call to Sh. Girish Mahour and informed him that he had reached Camp Chauk upon which HC Girish Mahour informed his exact position to him (complainant). Accordingly, he (complainant) reached to the location of HC Girish Mahour and met him. HC Girish Mahour asked him (complainant) about Raja Babu and Lucky upon which he (complainant) informed that neither Rajababu nor Lucky was coming. HC Girish Mahour further asked whether they got information that police were finding them upon which he (complainant) answer in affirmative.

Complainant narrated that he (complainant) requested HC Girish Mahour that he could arrange only Rs.7,000/- upon which he directed him (complainant) to bring more than Rs.7,000/- and email of AU small finance bank, tomorrow at

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Samay
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Aakash
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1100 Hrs. HC Girish Mahour further assured him (complainant) that his account would be started tomorrow upon which complainant replied that he (complainant) could arrange only Rs.8000/- to which HC Girish Mahour agreed.

Independent witness was asked to narrate the incidents, on which he told that complainant entered in Cyber Police Station, Model Town, North West Delhi and went to the reception. After a short while he talked someone over the mobile phone. He further narrated that complainant came out the Cyber Police Station and started moving towards the direction where CBI vehicle was parked. On the way, he talked to someone over his mobile phone.

Independent witness further narrated that sudden after reaching the parked vehicle, he was again directed by the CBI team to follow the complainant and was asked to remain close to the complainant and try to see the person with whom the complainant will converse and try to overhear the conversation as far as practically possible.

Independent witness further narrated that complainant and he went to the Camp Chouk in e-rickshaw. After reaching, he maintained a safe distance from the complainant. After a while, the complainant met a person who was in Police uniform and had a brief conversation. After the conversation, the complainant came to him and they went to parked vehicle of CBI in e-rickshaw. After reaching, the DVR was taken from the complainant.

Thereafter, CBI team along with independent witness and complainant left the spot in office vehicle at about 1610 Hrs and reached CBI office at about 1705 Hrs. The recorded conversation of complainant and suspect officer was also heard through the DVR, which corroborated the version of the complainant and independent witness.

The Memory Card was taken out from the DVR and an investigation copy of the Memory Card was prepared with the help of Write Blocker in the official Desktop in the presence of independent witness. The Memory Card was then kept in its plastic cover and the plastic cover was kept in its paper cover and the paper cover was signed by the complainant Shri Pramod Kumar, Independent witness Shri. Samay Singh Yadav, VO Davinder Kumar & AVO Aakash K. Srivastav and further was marked as "Q-1 in CO-77/2024". Then the paper cover was kept in brown envelope and sealed with CBI Seal in the presence of Independent Witness. The brown envelope was signed by the verification team members along with independent witness and complainant. The brown envelope was also marked as "Q-1 in CO-77/2024" and taken in police possession vide this memo. The specimen seal impression in ink has been taken on verification memo as well as on separate sheet of papers in lac and ink for future requirements in the presence of independent witness and these separate sheets were signed by the independent witness and VO. The seal was given to the independent witness with direction to produce on the requirement for further proceedings.

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Samay
23/10/24

Aakash
23/10/24

SD
23/11/24

The verification memo was prepared in CBI office. The proceedings of this memo concluded at 2100 hrs on 23.10.2024. This memo is being signed by the verification team including independent witness, the complainant.

The verification has revealed that Head Constable Girish Mahour, Cyber Police Station, North West Delhi has demanded Rs. 10,000/- as bribe amount from the complainant to De-freeze his account No. 2211248938750420 / and agreed to receive Rs. 8000/- as bribe after negotiation.

Complaint and verification report prime facie revealed the demand of illegal gratification of Rs. 10,000/- and agreed to receive Rs.8,000/- in the part of Head Constable Girish Mahour, Cyber Police Station for de-freezing the account of complainant.

In the view of above mentioned facts, it is recommended to register a regular case against Sh. Girish Mahour, Head Constable, Cyber Police Station, Model Town, North West Delhi U/s 7 of PC Act- 1988 (as amended in 2018).

<u>Pramod Kumar</u> 23/10/24 Sh. Pramod Kumar (Complainant)	<u>Samay</u> 23/10/24 Sh. Samay Singh Yadav Independent Witness
<u>Aakash</u> 23/10/24 Aakash Srivastav Sub-Inspector, CBI, ACB, New Delhi	<u>D</u> 23/10/24 Davinder Kumar Inspector, CBI, ACB, New Delhi

Received CBI brass seal.

Samay
23/10/24

13. Action taken : Since the above information reveals commission of offence (s) u/s as mentioned at Item no. 2

(1) Registered the case and took up the investigation or

Regular Case is registered

(2) Directed (Name of IO): Rank: No. Took up for investigation

Shri Mukesh Mishra

Inspector, CBI, ACB, Delhi

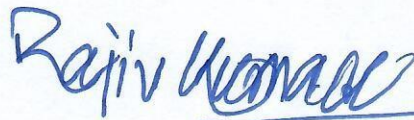
(3) Refused investigation due to or

(4) Transferred to PS - District - on point of jurisdiction -

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant


Signature of Officer in-charge 24/10/24
Police Station:
Name: **Rajiv Kumar**
Rank: **I/cSupdt. of Police**
CBI:ACB: Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with date